

Legal Status for AI: Citizenship, Personhood, and Corporate Wrappers for a DAIO (2026)

TL;DR

- **No jurisdiction anywhere grants genuine legal personhood, citizenship, or rights to an AI system itself.** Every "AI citizenship," "AI director," or "AI-owned company" headline resolves on inspection into either a symbolic PR gesture (Saudi Arabia's Sophia, Tokyo's Shibuya Mirai), a non-voting advisory role (Deep Knowledge Ventures' VITAL, IHC's "Aiden Insight"), or — most usefully for your project — a **human-owned or algorithmically-managed legal wrapper** where the legal entity is the recognized "person," not the AI.
- **The realistic and currently-available path** for a deployed DAIO is a *legal wrapper*: a Wyoming DAO LLC or DUNA, a Marshall Islands DAO LLC, or an offshore ownerless foundation (Cayman, Panama, Swiss/Liechtenstein). These give the on-chain organization legal existence, limited liability, the ability to contract, bank, sue, hold assets, and pay taxes — while the AI/algorithm functions as the "manager" and humans remain the ultimate accountable members/supervisors.
- **The frontier — a truly autonomous, memberless, AI-controlled entity** — is academically demonstrated (Shawn Bayern's "zero-member LLC") and partially codified (Wyoming's algorithmically-managed DAO LLC), but remains legally untested, exposes participants to liability under recent court rulings (Ooki DAO), and is being actively *resisted* by some legislatures (Utah and Idaho enacted laws in 2024 explicitly denying AI legal personhood).

Key Findings

1. **AI "citizenship" is symbolic, not legal.** Saudi Arabia's October 25, 2017 grant of "citizenship" to Hanson Robotics' Sophia conferred no identifiable legal rights, was never accompanied by published legal documentation, and is universally regarded by legal scholars as a marketing stunt tied to the Future Investment Initiative. Tokyo's Shibuya Ward granted a "residence certificate" to an AI chatbot, "Shibuya Mirai," on November 4, 2017 — equally symbolic.
2. **"Electronic personhood" for robots was proposed by the EU Parliament in 2017 and then abandoned.** The current EU position (across the 2020 liability resolution and the 2024 AI Act) is that AI systems have *no* legal personality; liability attaches to providers, deployers, and users (all natural or legal persons).
3. **AI cannot be a patent inventor in the major jurisdictions.** The DABUS test cases were rejected by the US (Federal Circuit, *Thaler v. Vidal*), the UK (Supreme Court, December 2023), and the EPO. Only South Africa (a non-examining deposit system) granted a DABUS patent; Australia briefly allowed it at trial before being unanimously reversed on appeal.

Novelpatent

4. **No jurisdiction lets an AI be a legal director, officer, member, or beneficial owner.** Every famous "AI on the board" case (VITAL in 2014, Aiden Insight in 2024) is a non-voting observer/advisory role; the human directors retain all legal authority and liability.
5. **The workable legal mechanism is the wrapper.** US states (Wyoming, Vermont, Tennessee, Utah) and offshore jurisdictions (Marshall Islands, Cayman, Panama, Switzerland, Liechtenstein) have created entity forms that accommodate algorithmic/smart-contract management. Wyoming's DAO LLC law explicitly permits "algorithmically managed" entities.

Details

1. AI Citizenship

Saudi Arabia / Sophia (2017). On October 25, 2017, at the Future Investment Initiative in Riyadh, the Saudi government announced it was granting "citizenship" to Sophia, a humanoid robot built by Hong Kong-based Hanson Robotics — making her, in the words of widespread coverage, "the first robot to receive citizenship of any country." Legal analysis is unanimous that this conferred no real legal status: [Wikipedia](#)

- **No published legal basis or rights.** No details of the citizenship were ever disclosed; no passport, property rights, voting rights, or other concrete incidents of citizenship were demonstrated. The Harvard Petrie-Flom Center, Slate, and the Georgetown Law Technology Review all treated it as a publicity move tied to attracting tech investment (and Vision 2030 / the Neom project).
- **Internal contradictions and unlawfulness.** Critics noted Sophia appeared without hijab or male guardian — rights then denied to Saudi women — underscoring that no real legal framework underpinned the gesture. Belgian firm Liedekerke's analysis concludes the Saudi "citizenship has been granted to Sofia in infringement of the laws of Saudi Arabia" and was "denounced as a marketing stunt."
- **The technology was overstated.** Hanson's own chief scientist Ben Goertzel admitted Sophia was "not yet capable of understanding the world nearly as well as would ordinarily be required for human citizenship"; experts (e.g., Facebook's Yann LeCun) called the consciousness claims misleading, and reviewers who examined the partially open-source code described Sophia as essentially "a chatbot with a face." [Petrie-Flom Center](#) [Wikipedia](#)
- **Precedent value: essentially nil.** Because it was symbolic and undocumented, it created no legal precedent. Its main effect was to catalyze academic debate ("robotlaw").

Japan / Shibuya Mirai (2017). On November 4, 2017, Tokyo's Shibuya Ward issued a symbolic "residence certificate" to "Shibuya Mirai," an AI chatbot (developed with Microsoft) modeled as a seven-year-old boy, living on the LINE messaging app. This was a civic-engagement publicity project, not a grant of legal residency or rights.

Assessment. No jurisdiction has granted, before or since, anything resembling genuine citizenship or nationality to an AI. The category is purely symbolic.

2. Legal Personhood for AI

The EU Parliament's 2017 "electronic personhood" proposal. On February 16, 2017, the European Parliament adopted (396 in favor, 123 against, 85 abstentions) a Resolution with Recommendations to the Commission on Civil Law Rules on Robotics (2015/2103(INL)), drafted by Luxembourg MEP Mady Delvaux. Paragraph 59(f) asked the Commission to explore "creating a specific legal status for robots in the long run, so that at least the most sophisticated autonomous robots could be established as having the status of electronic persons responsible for making good any damage they may cause." The motivation was primarily about **liability** for autonomous systems, not rights or consciousness — modeled loosely on corporate personhood.

AI Rights Institute Liedekerke

Why it was rejected. In 2018, an open letter to the European Commission opposing the proposal was signed by **156 experts in AI, robotics, commerce, law and ethics from 14 countries** (per Gizmodo's April 2018 report and MIT Technology Review's coverage), with lead signatories including Nathalie Nevejans (CNRS Ethics Committee), Noel Sharkey (Foundation for Responsible Robotics), and Raja Chatila (former president of the IEEE Robotics & Automation Society). Their core arguments:

- A robot can't derive status from the **natural person** model — that would give it human rights (dignity, citizenship, remuneration), conflicting with the EU Charter of Fundamental Rights.
Gizmodo
- It can't derive status from the **legal entity** model either, because that model presupposes human persons behind the entity to represent and direct it — absent for an autonomous robot.
Gizmodo
- It would create a **moral hazard / liability shield**, letting manufacturers and operators escape responsibility.

The Parliament duly abandoned the idea. By its 2020 Resolution on a civil liability regime for AI, the Parliament expressly stated that "AI-systems have neither legal personality nor human conscience." The European Economic and Social Committee had opposed any legal status for AI as early as May 2017, on the grounds that it entailed "an unacceptable risk of moral hazard."

Current EU position (AI Act + liability). The EU AI Act (Regulation (EU) 2024/1689), in force August 1, 2024 with most provisions applying from August 2, 2026, is a risk-based product-safety/regulatory regime. It makes **no mention** of AI legal personality; obligations fall on Providers, Deployers, Importers, and Distributors — all natural or legal persons. The accompanying liability instruments target the same human/corporate actors; the proposed AI Liability Directive was withdrawn in the Commission's 2025 work programme. The EU's settled

position is that AI has no separate legal personality and cannot be sued or prosecuted in its own name. [Techreg](#)

Estonia. A widely-reported proposal to create a special AI legal personality ("kratt" law) was considered and ultimately not adopted (per Liedekerke).

AI as patent inventor — the DABUS cases. Physicist Stephen Thaler, supported by law professor Ryan Abbott's "Artificial Inventor Project," filed patents (a food/beverage container and an emergency light beacon, filed October–November 2018) naming his AI "DABUS" (Device for the Autonomous Bootstrapping of Unified Sentience) as the sole inventor. Outcomes:

- **United States — Rejected.** USPTO rejected (April 2020); the Court of Appeals for the Federal Circuit affirmed in *Thaler v. Vidal*, 43 F.4th 1207 (Fed. Cir. 2022), holding an "inventor" under 35 U.S.C. §100 must be a natural person/"individual"; the Supreme Court declined review April 24, 2023. [arxiv](#)
- **United Kingdom — Rejected.** The UK Supreme Court in *Thaler v Comptroller-General* [2023] UKSC 49 (December 20, 2023) unanimously held that an inventor under the Patents Act 1977 must be a natural person, that DABUS "was not and is not a person," and that Thaler had no independent right to the patent merely by owning DABUS. The Court expressly noted it was *not* deciding whether AI-generated inventions should be patentable (a policy question), and that the outcome "might well have been different" had Thaler claimed to be the inventor using DABUS as a tool.
- **EPO — Rejected.** The European Patent Office refused on the ground that an inventor must have legal capacity, which AI lacks. [Novelpatent](#)
- **Australia — Initially allowed, then reversed.** Justice Beach of the Federal Court ruled on July 30, 2021 that an AI *could* be an inventor (the first such ruling worldwide), but the Full Federal Court unanimously reversed on April 13, 2022, holding inventorship "lies in human endeavour." [Lexology](#)
- **South Africa — Granted (but procedural).** South Africa's patent office published a patent naming DABUS as inventor on July 28, 2021 — the first in the world. However, South Africa operates a **non-examining deposit/registration system** with no substantive review and no statutory definition of "inventor," so this is widely regarded as a procedural artifact, not a considered legal endorsement of AI inventorship.

Bottom line: Under current patent law in essentially every substantively-examining jurisdiction, AI cannot be an inventor; the right attaches to humans.

3. AI-Owned or AI-Operated Companies / "AI Corp"

US state laws permitting algorithmic/autonomous management:

- **Vermont — Blockchain-Based LLC (BLLC).** "An Act Relating to Blockchain Business Development" (S.269), signed May 30, 2018, effective July 1, 2018 (codified at 11 V.S.A. §4171 et seq.). A BLLC may "adopt any reasonable algorithmic means" for its

consensus/governance and decision-making (§4175). The first BLLC (Trace LLC) formed July 1, 2018; dOrg later became, per Vermont Law professor Oliver Goodenough, the first legal entity to directly reference blockchain code as its source of governance. Tagalliances

- **Wyoming — DAO LLC (the most directly relevant).** The "Decentralized Autonomous Organization Supplement" (SF0038), signed April 21, 2021, effective July 1, 2021 (W.S. §17-31-101 et seq.), made Wyoming the first US state to recognize DAOs as a form of LLC. A DAO LLC may be "**member managed**" or "**algorithmically managed**" (W.S. §17-31-109). Critically, an algorithmically-managed DAO can only form if its **underlying smart contracts can be updated, modified, or upgraded** — meaning some residual human/centralized control is *required* by statute. The name must include "DAO," "LAO," or "DAO LLC"; articles must list a public smart-contract identifier; and a Wyoming registered agent is required. American CryptoFED DAO became the first on July 1, 2021. Amendments (SF0068, March 2022) clarified that management vests in members and/or smart contracts.
- **Tennessee — DAO LLC.** HB2645/SB2854, signed April 20, 2022 (Tenn. Code Ann. §48-250-101 et seq.), largely tracks Wyoming, wrapping DAOs as LLCs ("DO," "DAO," "DO LLC," or "DAO LLC").
- **Utah — Limited Liability Decentralized Autonomous Organization (LLD).** The Utah DAO Act (HB357), signed March 2023, effective January 1, 2024 (Utah Code Ann. §48-5-101 et seq.), goes furthest: rather than wrapping a DAO inside an LLC, it creates the **LLD as its own distinct legal entity type** — the first US state to do so. It requires at least one natural-person organizer, software quality-assurance evidence, and a GUI for monitoring transactions.
- **Wyoming — DUNA (2024).** The Decentralized Unincorporated Nonprofit Association Act (SF0050), signed March 7, 2024, effective July 1, 2024 (W.S. §17-32-101 et seq.), creates a nonprofit DAO vehicle with legal personality, limited liability, and the ability to contract, sue, hold property, and pay taxes — governed by "governing principles" including smart contracts and consensus algorithms. It requires at least 100 members (falling below converts it to a standard UNA). a16z championed it as "an oasis for DAOs."

Can an AI be a director, officer, or sole member? No.

- **Deep Knowledge Ventures / VITAL (2014).** On May 13, 2014, Hong Kong VC firm Deep Knowledge Ventures announced it had "appointed" an algorithm called VITAL (Validating Investment Tool for Advancing Life Sciences) to its board. This was **largely PR**: VITAL was not a machine-learning system but a fuzzy-logic tool scoring ~50 risk parameters; under Hong Kong corporate law a non-natural person *cannot* be a board member; managing partner Dmitry Kaminskiy later clarified VITAL had only **observer status with no voting rights**. Computer scientist Noel Sharkey called it "a little bit of publicity hype."
- **IHC / "Aiden Insight" (2024).** On February 26, 2024, Abu Dhabi's International Holding Company (IHC) — the UAE's largest listed company — announced it was appointing "Aiden Insight," an AI developed by G42 in collaboration with Microsoft (using G42's "BoardNavigator" tool), to a newly-created **non-voting "Board Observer"** position. IHC's

own release states Aiden "will attend IHC Board meetings as a non-voting observer, offering real-time insights to inform discussions and guide decisions." It is explicitly *not* a legal director and has no vote. A 2025 successor, "Aiden Insight 2.0" (developed with Aleria Technology), remains an observer. No company in 2024–2026 has placed an AI in a genuine voting/legal-director seat. Middleeastainews

Zero-member / memberless LLCs (the academic frontier). Florida State law professor **Shawn Bayern** demonstrated, in "Of Bitcoins, Independently Wealthy Software, and the Zero-Member LLC" (108 Nw. U. L. Rev. 1485, 2014) and "The Implications of Modern Business-Entity Law for the Regulation of Autonomous Systems" (19 Stan. Tech. L. Rev. 93, 2015), that under flexible modern LLC statutes (and RULLCA) an autonomous system can gain *de facto* legal personhood:

- A human (1) forms a member-managed LLC; (2) adopts an operating agreement specifying the LLC acts as directed by an autonomous system; (3) admits the LLC's control to that system; (4) withdraws as member — leaving a perpetual, memberless LLC controlled by the algorithm.
- Bayern argues legal personhood becomes "like fire: it can be granted by anyone who already has it" — a peer-to-peer, bottom-up process, not a government bestowal. Even where a state forbids memberless entities, an **entity cross-ownership** trick (two LLCs each owning the other, both algorithm-controlled) achieves the same result.
- **This is contested and jurisdiction-specific.** Critics (e.g., Matthew Scherer) argue the default 90-day dissolution rule for memberless LLCs (RULLCA §701(a)(3)) and other provisions undercut it. Civil-law jurisdictions reject it outright: Daniel Häusermann shows Swiss law requires a human supreme governing body and forbids memberless corporations/LLCs.

Beneficial owner / signatory. An AI cannot be a beneficial owner (which under AML/KYC rules — e.g., the Marshall Islands' >25% control test, the US Corporate Transparency Act — requires a natural person) or an independent legal signatory. In practice the human members/managers/supervisors of the wrapper are the beneficial owners and signatories; the AI executes within authority delegated by them.

4. DAO/DAIO Legal Wrappers — Comparative

Wrapper	Statute / Basis	Legal personality	AI/algorithmic control permitted?	Notes
Wyoming DAO LLC	W.S. §17-31-101 (2021)	Yes (LLC)	Yes — "algorithmically managed," but smart contract must be upgradeable	US-onshore; registered agent required; public smart-contract ID; auto-dissolves after 1 yr inactivity

Wrapper	Statute / Basis	Legal personality	AI/algorithmic control permitted?	Notes
Wyoming DUNA	W.S. §17-32-101 (2024)	Yes (nonprofit assoc.)	Yes — governing principles incl. smart contracts	Nonprofit; ≥100 members; strong liability shield; a16z-backed
Utah LLD	Utah Code §48-5-101 (2023/24)	Yes (distinct entity)	Yes — by-laws govern	Needs ≥1 human organizer; code QA + monitoring GUI required
Vermont BLLC	11 V.S.A. §4171 (2018)	Yes (LLC)	Yes — "reasonable algorithmic means"	Earliest US framework
Marshall Islands DAO LLC	DAO Act 2022 (+2024 regs)	Yes (LLC, for- or non-profit)	Yes — operating agreement can point to smart contract	First <i>nation</i> to recognize DAOs; KYC for founders + ≥10% holders; 0% tax (non-profit), 3% gross-revenue (for-profit); MIDAO registry
Cayman foundation company	Foundation Companies Act 2017	Yes	Yes (via bylaws/board taking DAO instruction)	"Ownerless"/memberless possible if a supervisor remains; tax-neutral; the global default wrapper (ENS, Nouns, Aave). Still has human directors/supervisor + compliance duties
Swiss foundation / association	Swiss Civil Code	Yes	On-chain management possible	Foundation = credibility (Ethereum Foundation, Zug "Crypto Valley") but high cost + human board (Stiftungsrat) carries fiduciary duty; association = cheap/flexible, ≥2 members
Liechtenstein foundation	Blockchain Act / PGR	Yes	Crypto-friendly	Token prospectus passportable to EU/EEA
Panama foundation	Panama foundation law	Yes	Yes	Strong confidentiality/asset protection; ~2 weeks to form; used in "Panama triangle" multi-entity setups

Which are most permissive of AI/algorithmic control? Wyoming's DAO LLC is the only US statute that *explicitly names* algorithmic management; the Marshall Islands DAO LLC is favored

for letting an operating agreement simply point to the governance smart contracts (e.g., Pyth DAO LLC). For "ownerless" structure (no shareholders), Cayman foundation companies are the global industry standard. **In every case, however, the law requires a human backstop** — an upgradeable contract (Wyoming), a supervisor/board (Cayman, Swiss), a registered agent, KYC'd members, and/or a natural-person organizer. None permit the AI itself to be the recognized legal person.

Practical reality (2024–2026): AI-agent DAOs already exist but use human wrappers. The most prominent example, **ai16z** (launched October 2024 on Solana; rebranded **ElizaOS** January 28, 2025 after a request from venture firm a16z), describes itself as "the first investment DAO led by AI agents," with an AI agent ("Marc Andreessen") influencing investment decisions. Its AI16Z token hit a **\$2 billion market cap on December 31, 2024** — becoming the first AI-agent token on Solana to do so (per CoinGecko data reported by Crypto Briefing, which noted the token "tripled in the past ten days, climbing from \$0.6 to \$1.8"), at the time ranking third among AI-agent coins behind VIRTUAL (~\$3.8B) and FET (~\$3.4B). VanEck's December 2024 "Top 10 Predictions for 2025" forecast that on-chain AI agents would exceed **1 million agents** by the end of 2025. Yet these operate through token/DAO structures and human-formed wrappers — the agent is not the legal owner. (Unchained)

5. Robot Rights / Legal Theory (2025–2026 state of the debate)

The scholarly debate runs along a spectrum:

- **Against personhood (currently dominant):** AI lacks consciousness, interests, agency, and accountability; emerging-technology attorney David Arrick, writing in Bloomberg Law ("AI's Leaps Forward Force Talks About Legal Personhood for Tech," 2025), warns that "AI personhood risks conferring rights without responsibility—becoming a tool for regulatory avoidance and a digital scapegoat with no assets, no morals, and no consequences." Joanna Bryson and co-authors argue personhood lets developers evade responsibility; some scholars argue AI fundamentally cannot be a "person" because moral agency "can't be effectively digitized."
- **For (or open to) personhood:** Analogizing to corporations, rivers, and other juridical persons, some (Bayern, LoPucki on "algorithmic entities") argue functional/legal personhood is already achievable and could be useful; others propose graduated or "functional personhood" tied to societal impact rather than moral status.
- **Legislative trend is cautious-to-hostile.** The UK Law Commission's August 2025 discussion paper floated AI legal personhood as a "radical possibility" but concluded AI remains a tool, not a person. Meanwhile **Utah and Idaho enacted statutes in 2024 that explicitly define legal personhood to exclude AI**, and Ohio introduced a 2025 bill (HB469) declaring AI nonsentient and barring it from holding a board seat, owning a company, or holding power of attorney. The clear near-term trajectory (per multiple analysts) is *no* personhood and *no* robot rights for the foreseeable future; the live policy work is on **liability allocation** to humans/companies, not status for the machine. (Legal Cheek)

6. Practical Takeaway for Deploying a DAIO in 2026

The hard limit: No jurisdiction will recognize your AI *itself* as a citizen, legal person, director, member, or owner. Legal recognition can only attach to (a) a wrapper entity controlled/backstopped by humans, or (b) the *algorithmic management* of a human-owned entity. Plan accordingly.

Realistic options, in rough order of practicality:

1. **Marshall Islands DAO LLC (MIDAO)** — purpose-built national DAO law; operating agreement can point directly to your governance smart contracts; for-profit or non-profit; fast (~3 weeks) and low-cost; KYC for founders and $\geq 10\%$ holders. Best all-rounder for a for-profit, globally-distributed DAIO that wants its on-chain governance recognized.
2. **Wyoming DAO LLC** — US-onshore credibility and the only statute that explicitly authorizes "algorithmically managed" entities; good if you want US nexus and banking. Constraint: smart contract must be upgradeable (so you must retain an admin/multisig key), a registered agent is required, and inactivity for 1 year triggers dissolution.
3. **Wyoming DUNA** — if the DAIO is non-profit / protocol-stewardship in nature and can muster ≥ 100 members; strongest liability shield and tax clarity; a16z's recommended path.
4. **Cayman foundation company** (often paired with a BVI or Panama token-issuance entity — the "Cayman-BVI" or "Panama triangle" structures) — the global default for an *ownerless* protocol treasury; memberless if a supervisor remains; tax-neutral; institutionally recognized. Best where you want no shareholders and a clean separation between treasury/governance and token issuance.
5. **Swiss/Liechtenstein foundation** — highest regulatory credibility (Ethereum Foundation model) but highest cost and real substance requirements; a human board (Stiftungsrat) carries fiduciary duty.

Design imperatives regardless of choice:

- **Keep an identifiable human accountable layer** (members, an admin multisig, a foundation board, or a supervisor). This is legally mandatory in every viable wrapper and is your defense against the *Ooki DAO / Sarcuni v. bZx* risk — US courts (CFTC v. Ooki DAO, default judgment June 2023; a California ruling treating bZx/Lido token-holders as a general partnership) have held that **unwrapped DAOs are general partnerships, exposing every token-holder to unlimited joint-and-several liability**. A wrapper is not optional if you want liability protection.
- **The AI = "algorithmic manager," humans = members/owners**. Structure the operating agreement or bylaws so the AI/smart contract executes operational decisions while significant decisions (or at least the power to upgrade/halt the contract) rest with KYC'd humans. This is exactly how MIDAO and Wyoming structures are drafted.

- **Beneficial ownership and signatures** must trace to natural persons for banking, AML/KYC, and (for foreign entities) US Corporate Transparency Act purposes. The AI cannot satisfy these.
- **Consider multi-entity siloing:** treasury in one jurisdiction (e.g., Cayman/Swiss foundation), token issuance in a VASP-friendly entity (e.g., BVI/Panama), and a DAO LLC for member-facing governance.

Benchmarks that would change this advice: (a) a jurisdiction actually *enacting* (not merely studying) a statute granting an AI agent entity-membership or personhood — Wyoming's blockchain committee only *discussed* autonomous AI agents in May 2025 and adopted no such bill; (b) a court upholding a genuinely memberless, AI-controlled LLC against a liability or dissolution challenge; or (c) the EU or a major jurisdiction reversing its settled "no AI personality" stance. Until one of these occurs, treat full AI legal autonomy as unavailable and build on a human-backstopped wrapper.

Recommendations

1. **Now:** Form a wrapper before the DAIO transacts, issues a token, or holds material assets. For a for-profit, globally-distributed AI-governed org, default to a **Marshall Islands DAO LLC** (operating agreement pointing to your smart contracts) or, for US nexus, a **Wyoming DAO LLC** (algorithmically managed). For an ownerless protocol treasury, use a **Cayman foundation company**, likely paired with a separate token-issuance entity.
2. **Mandatory:** Retain a human accountability layer (admin multisig / foundation board / KYC'd members) — both because every statute requires it and because it is the only protection against general-partnership liability for participants.
3. **Structurally:** Draft governance so the AI is the *algorithmic manager* of a human-owned entity, not a purported member/owner; keep contract upgrade/halt keys with humans (also Wyoming statutory requirement).
4. **Compliance:** Map beneficial owners and signatories to natural persons for banking/AML; budget for VASP analysis if you issue or custody tokens; consider multi-entity siloing.
5. **Monitor** for the benchmarks above (enacted AI-agent entity laws; favorable memberless-LLC case law) before attempting a truly autonomous, human-free structure.

Caveats

- This synthesizes public legal sources and is **not legal advice**; engage qualified counsel in each chosen jurisdiction (and tax advice in founders' home jurisdictions).
- The fast-moving 2024–2026 "AI agent" space generates significant marketing hype (e.g., "first AI-run fund"); claims of AI autonomy frequently outrun the legal reality, in which humans remain owners and accountable parties.

- Several cited commercial sources (DAO formation firms, law-firm marketing) have an interest in promoting particular wrappers; the core statutory facts are corroborated by primary legislation and reputable legal commentary, but jurisdiction-specific details change frequently.
- Liability law for DAOs is unsettled and evolving; the *Ooki DAO* and bZx/Lido rulings show real exposure for unwrapped structures, but how courts will treat properly-wrapped, AI-managed entities remains largely untested.